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File No.: EXP202317959

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On December 15, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against TECH EDUCATION, RIGHTS & TECHNOLOGIES, S.L. (hereinafter, the respondent), through the Agreement that is transcribed:

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Procedure No.: EXP202317959 (PS/00555/2023)

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On 24/07/23, A.A.A. (hereinafter, the complainant) submitted a complaint to the Spanish Agency for Data Protection.

The complaint is directed against the entity TECH EDUCATION, RIGHTS & TECHNOLOGIES, S.L. with CIF: B76755842 (hereinafter, the respondent), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR), and Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD).

The facts stated by the complainant are as follows:

"On 07/02/23, I sent an email to the indicated email addresses to exercise my right to erasure of data from the company ECH EDUCATION, RIGHTS. On 08/02/23, the data protection officer sent me an email indicating that my data had been deleted from their databases. On 19/07/23, I received commercial information."

Along with the complaint, the following documentation is attached:

- Dated 08/02/23, a copy of the email received from the address ***EMAIL.1, with the Subject: "Right to Erasure" and the message:

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Dear A.A.A., I apologize for any inconvenience and confirm that your data has been deleted from our database (...) That, in accordance with your request, we confirm that from the date of your request, any personal data relating to you has been excluded from processing by TECH EDUCATION. (...).

- Dated 19/07/23, a copy of the email received from the address ***EMAIL.2 containing a commercial or advertising message.

SECOND: On 26/09/23, in accordance with the provisions of Article 65.4 of the LOPDGDD, this Agency forwarded the complaint to the respondent for analysis and to inform, within one month, about what was stated in the complaint.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), according to the certificate from the Electronic Notifications and Electronic Address Service, was sent to the respondent on 07/07/23 via the electronic notifications service, "NOTIFIC@", and was accepted by the respondent on 28/09/23.

No response has been received to this forwarding letter.

THIRD: On 24/10/23, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the

complainant was admitted for processing.

LEGAL GROUNDS

I.

Competence.

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II.

Summary of the events that occurred:

In the complaint submitted by the complainant, it is stated that on 07/02/23, they sent an email to the respondent requesting their right to erasure of any data held by the company, and one day later, on 08/02/23, the data protection officer of the entity sent them an email acknowledging receipt and confirming that their data had been deleted from their

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systems. However, on 19/07/23, the respondent, using the personal data of the claimant, sent a new advertising email to the claimant.

III

Right to Erasure (Right to be Forgotten)

The article 17 "Right to erasure ('the right to be forgotten') of the GDPR states:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following applies: a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed; b) the data subject withdraws consent on which the processing is based according to Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), and this is not based on another legal ground; c) the data subject objects to the processing pursuant to Article 21, paragraph 1, and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21, paragraph 2; d) the personal data have been unlawfully processed; e) the personal data must be erased for compliance with a legal obligation in Union or Member State law applicable to the controller; f) the personal data have been collected in relation to the offer of information society services referred to in Article 8, paragraph 1.

(...)

3. Paragraphs 1 and 2 shall not apply to the extent that processing is necessary: a) for exercising the right to freedom of expression and information; b) for compliance with a legal obligation which requires processing by Union or Member State law applicable to the controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller; c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3; d) for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes, in accordance with Article 89, paragraph 1, to the extent that the right referred to in paragraph 1 is likely to render impossible or seriously impair the achievement of the objectives of that processing, or e) for the establishment, exercise or defense of legal claims."

In the present case, it has been established that the claimant requested the erasure of their personal data from the respondent, receiving the corresponding acknowledgment of receipt from the respondent. However, after that, the respondent, using the personal data of the claimant, sent them a new advertising email. Therefore, in accordance with the evidence available at this moment in the initiation of the sanctioning procedure, and without prejudice to the outcome of the investigation, it is considered that these facts could be

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constitutive of an infringement, attributable to the claimed party for violation of Article 17

of the
GDPR.
IV

Classification and qualification of the infringement of Article 17 of the GDPR

If confirmed, the aforementioned infringement of Article 17 of the GDPR could constitute the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” states:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to a maximum of 4% of the total global annual turnover of the previous financial year, opting for the higher amount: (...) b) the rights of the data subjects under Articles 12 to 22;”

For the purposes of the statute of limitations, Article 72.1.k) “Very serious infringements” of the LOPDGDD indicates:

1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations: those that constitute a substantial violation of the articles mentioned therein and, in particular, the following: (...) k) The hindrance or obstruction or repeated failure to address the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679.”

V

Proposal for sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account: a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and harm suffered; b) the intentionality or negligence in the infringement; c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects; d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32; e) any

previous infringement committed by the controller or the processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular

whether the controller or the processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or the processor in relation to the same matter, compliance with those measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as financial benefits obtained or losses avoided, directly or indirectly, through the infringement.”

Regarding paragraph k) of Article 83.2 of the GDPR, the LOPDGDD, Article 76, “Sanctions and corrective measures,” provides: “1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article. In this case, considering the severity of the established infringement, especially regarding the consequences that its commission causes to the claiming party, the imposition of a fine is appropriate, in addition to the adoption of measures, where applicable. The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. According to the indicated provisions, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure and without prejudice to what results from the instruction of the procedure, for the purpose of determining the amount of the sanctions to be imposed in this case, it is considered appropriate to graduate the sanctions according to the following aggravating criteria established by the transcribed provisions:

- Article 83.2.a) of the GDPR: “a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage suffered.” The Agency considers that the nature of the infringement is very serious, as after assuring the claimant that their personal data had been deleted, it has been established that such deletion did not occur since the personal data continued to be used to send commercial communications.

Considering the factors presented, the initial assessment of the fine for the infringement of Article 17 of the GDPR is 5,000 euros (five thousand euros), without prejudice to what results from the instruction of the procedure.

VI

Adoption of measures

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If the violations are confirmed, it may be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”.

In such a case, in the resolution that is adopted, this Agency may order the responsible party to notify the Agency within one month of the adoption of the measures imposed in the resolution of the procedure for exercising rights consisting of the deletion of the personal data that the respondent holds about the complainant.

The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in article 83.2 of the GDPR. It is warned that failure to comply with the possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative violation in accordance with the provisions of the GDPR, classified as a violation in its articles 83.5 and 83.6, which may motivate such conduct to lead to the initiation of a further sanctioning administrative procedure.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against the entity TECH EDUCATION, RIGHTS & TECHNOLOGIES, S.L. with CIF: B76755842, for the violation of article 17 of the GDPR, classified in article 83.5 of the GDPR, for failing to comply with the request for the exercise of the right to erasure of the personal data of the complainant.

SECOND: TO APPOINT R.R.R. as Instructor, and S.S.S. as Secretary, if applicable, indicating that either of them may be recused, if applicable, in accordance with the provisions of articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, all of which are part of this administrative file.

FOURTH: THAT for the purposes provided in article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be 5,000 euros (five thousand euros).

FIFTH: TO NOTIFY this agreement to initiate the sanctioning file to the entity TECH EDUCATION, RIGHTS & TECHNOLOGIES, S.L., granting it a period

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of a ten business day hearing for you to formulate allegations and present the evidence you deem appropriate.

If you do not make allegations regarding this initiation agreement within the stipulated period, it may be considered a resolution proposal, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, in the event that the sanction to be imposed is a fine, you may acknowledge your responsibility within the period granted for formulating allegations to this initiation agreement; this will entail a 20% reduction of the sanction that may be imposed in this procedure, equivalent in this case to 1,000 euros. With the application of this reduction, the sanction would be set at 4,000 euros, resolving the procedure with the imposition of this sanction.

Likewise, you may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a 20% reduction of its amount, equivalent in this case to 1,000 euros. With the application of this reduction, the sanction would be set at 4,000 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures. The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted for formulating allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were applicable, the amount of the sanction would be set at 3,000 euros (Three thousand euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction.

If you choose to proceed with the voluntary payment of any of the amounts indicated above (4,000 euros or 3,000 euros), you must make it effective by depositing it into account No. ES00 0000 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering. You must also send the proof of payment to the General Subdirectorato of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement or, where applicable, from the draft initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

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In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be made exclusively electronically, through the Single Authorized Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be noted in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address before this Agency to receive notice of the availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid. Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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SECOND: On January 10, 2024, the respondent has proceeded to pay the sanction in the amount of 3,000 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted for formulating allegations to the opening of the procedure, entails the waiver of any action or administrative appeal against the sanction and the acknowledgment of responsibility regarding the facts referred to in the Initiation Agreement.

FOURTH: The previously transcribed Initiation Agreement indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the cited Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified period...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is warranted.

LEGAL GROUNDS

I

Competence

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In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions of Title VIII and its implementing rules shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the competencies attributed to it by other laws."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

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FIRST: DECLARE the termination of procedure EXP202317959, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: ORDER TECH EDUCATION, RIGHTS & TECHNOLOGIES, S.L. to notify the Agency within one month from the date this resolution becomes firm and executable, of the adoption of the measures described in the legal grounds of the initiation Agreement transcribed in this resolution.

THIRD: NOTIFY this resolution to TECH EDUCATION, RIGHTS & TECHNOLOGIES, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the Fourth Additional Provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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